Bluebook Training, Rules 12-14

Wednesday, February 25, 2026

Admissions Updates

- **Last Admissions Event!**
  - **Inside Upper Masthead**: Student Perspectives on Thursday, **February 26**, 2:10 pm, SLB 122
- Admissions Statement Released! Monday, **March 2** at 8 AM
  - **Submit final questions to form by noon on Friday**

Rule 12: Statutes

Overview

- Rule 12: Statutes
- Rule 13: Legislative Materials
- Rule 14: Administrative & Executive Materials

The biggest challenge with these rules is knowing what kind of source you're working with.

Overview - Statutes

- Bills
  - Proposed legislation (entirely new legislation and/or amendments to existing laws)
- Session Laws
  - Legislation enacted during a session of a legislature
  - Public laws (Majority): Laws that apply to the nation as a whole or a class of individuals
  - Private laws: Laws enacted for the benefit of a particular individual or small group
- Codes
  - Codification of the laws enacted by the legislature
  - Generally organized by subject area
  - Incorporates amendments

Basic Forms

There are three places where we find statutes:

- **(1) Codes (official and unofficial)**
  - E.g., U.S. Code
  - Arranged by subject matter. U.S.C. published every six years! Current version is **2024**.
- **(2) Session laws (official and privately published)**
  - E.g., U.S. Statutes at Large
  - Compiled chronologically
- **(3) Commercial databases / secondary sources**
  - Only use when the above aren't available
- T1 tells you how to format codes and session laws for federal and state jurisdictions.

Choosing the Proper Form

- For statutes currently in force:
  - Cite to current official code or its supplement.
    - U.S.C.
  - If unavailable, (e.g., if enacted after latest version of U.S.C.) cite to current unofficial code or supplement.
    - U.S.C.A. (published by West)
- For statutes not currently in force:
  - If still in current official or unofficial code, cite there.
  - Otherwise, cite last code it appeared in.
    - Remember, every six years (2000, 2006, 2012, 2018, 2024)
  - Include a parenthetical explanation for repeal/amendment/ invalidation

Exceptions

- (1) Scattered statutes
  - If the statute deals with many subject matters, it may be codified in multiple sections or titles of a code.
  - Cite the session laws, but indicate parenthetically the general location of the codified sections
    - (codified in scattered sections of 42 U.S.C.)
- (2) Historical fact of enactment, amendment, or repeal
  - Cite to session laws
- (3) Materially different language between Code and session laws
  - Cite to session laws

Codes

- Cite to the official United States Code (**U.S.C.**) whenever possible
  - Unofficial codes include U.S.C.A. (published by West), U.S.C.S. (published by Lexis)
  - Official and unofficial codes for states are in T1.3.
- Every citation to a state code contains: [ABBREVIATED NAME OF CODE] [Subdivision(s)] (year).
  - Example: N.C. GEN STAT. § 1-181 (2003).
- Additional information can be (and often is) included. See next two slides for more.

Additional Material

- Name of the act: include only if the statute is commonly cited that way or if the information would be helpful
  - Omit "The" as the first word
  - Include the year if it's part of the official name
  - Popular name can also be included
  - Can also include an original section number after the name

  - Labor Management Relations (Taft-Hartley) Act § 301(a), 29 U.S.C. § 185(a) (2018).
  - Family Medical Leave Act (FMLA) of 1993, 29 U.S.C. § 2601 (2018).

Additional Material

- Title, Chapter, Volume, Subject Matter: must be indicated if the code is divided as such
  - The U.S. Code, for example, is divided into separate titles.
    - 42 U.S.C. § 1983 (2018).
    - 12 U.S.C. § 1710 (2018).
  - Many state codes divided by subject matter. How do you know? Check T1!
    - CAL. VEH. CODE § 11506 (West 2000).
  - S.R. 12.3.2: Always include the year in citations to the federal Code, unless mentioned in an explanatory parenthetical attached to a session law citation
    - *See, e.g.*, Tax Reduction Act of 1975, Pub. L. No. 94-12, 89 Stat. 26 (codified as amended in scattered sections of 26 U.S.C. ~~(2024)~~).

State Code Example (T1)

Statutory compilations: Texas is nearing the completion of a recodification of its laws. Cite to the new subject-matter TEX. CODE ANN., if therein; otherwise, cite to TEX. REV. CIV. STAT. ANN. or to one of the independent codes contained in the series *Vernon's Texas Civil Statutes* or *Vernon's Texas Statutes Annotated*. Note that the independent codes are not part of the new subject-matter TEX. CODE ANN.

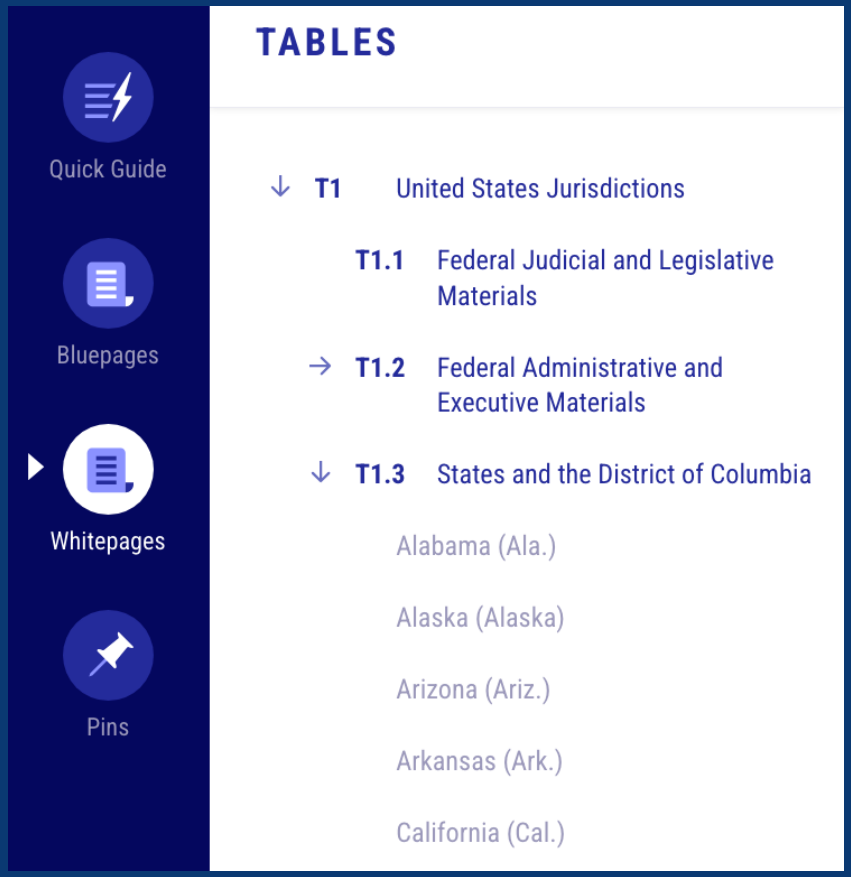
▸ Vernon's Texas Codes Annotated (West)	TEX. <SUBJECT> CODE ANN. § x (West <year>)

State Code Example (T1)

▸ Agriculture	Agric.
▸ Alcoholic Beverage	Alco. Bev.
▸ Business and Commerce	Bus. & Com.
▸ Business Organizations (effective Jan. 1, 2006)	Bus. Orgs.
▸ Civil Practice and Remedies	Civ. Prac. & Rem.
▸ Education	Educ.
▸ Election	Elec.
▸ Estates	Est.
▸ Family	Fam.
▸ Finance	Fin.

Rule 12.3

Accessing State Codes



Session Laws

- (1) Include name of statute and the public law (post-1957) or chapter number (pre-1957)
  - Foreign Assistance Act of 1961, Pub. L. No. 87-195, 75 Stat. 424.
  - Clayton Antitrust Act of 1914, ch. 323, § 7, 38 Stat. 730, 731–32.
  - Federal laws are labeled "Pub. L. No. X"
  - If no official name, use "Act of [date of enactment]" or "Act effective [date of effectiveness]"

- (2) Volume number + Abbreviated name of session laws
  - Federal laws are published in the *U.S. Statutes at Large*: e.g., 83 Stat.
  - Vol. # sometimes replaced by the year: 1878 Minn. Laws

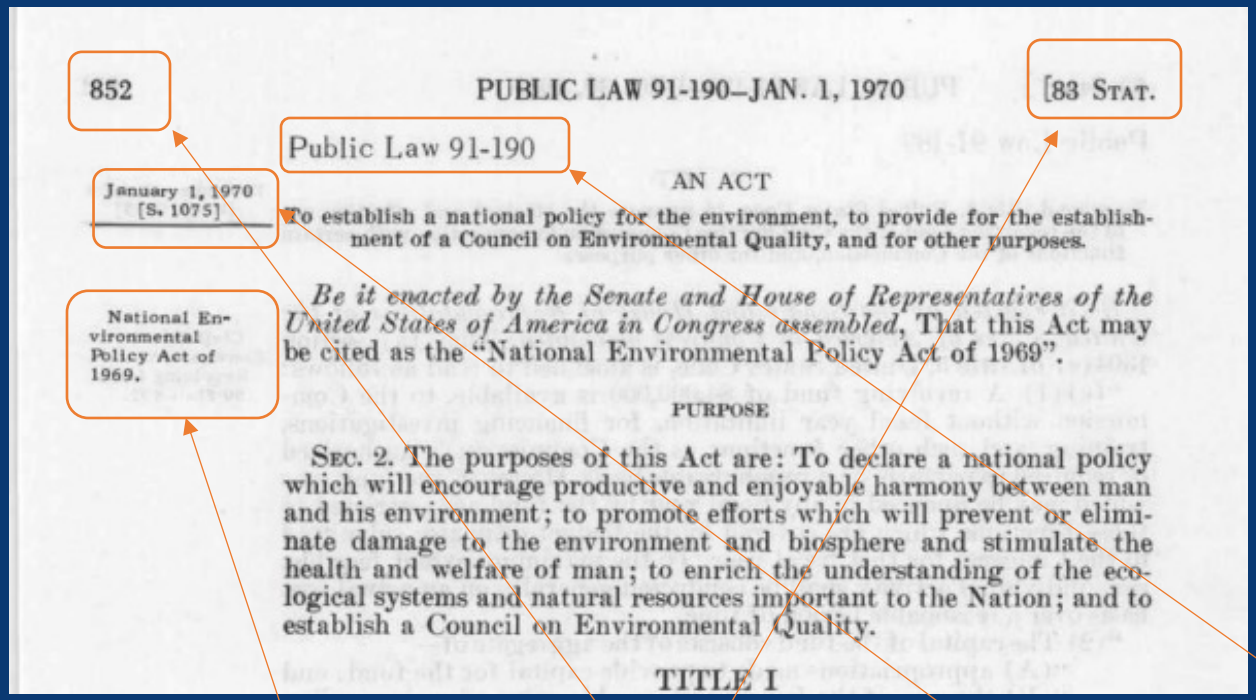
Session Laws

- (3) First page of the act
  - If citing the entire act, you don't need a pincite.
  - BUT if pinciting, need both the particular section you're citing AND the page(s) on which it appears
    - National Environmental Policy Act of 1969, Pub. L. No. 91-190, § 102, 83 Stat. 852, 853-54 (1970).
- (4) Year or date of passage
  - Indicate in parentheses
  - But omit the year in parentheses if the <u>same year</u> is part of the name of the statute OR session laws
    - Stilwell Act of 1961, Pub. L. No. 87-195, 75 Stat. 424.
    - Stilwell Act, Pub. L. No. 87-195, 75 Stat. 424 (1961).

Session Laws

- If you know where the act will be/is codified, provide that information parenthetically.
  - Remember session laws have been enacted by a legislative body and will, eventually, be codified somewhere (but you may or may not have that information on hand from the source)
  - (to be codified at CAL. INS. CODE § 11589.5)
  - (codified as amended at 18 U.S.C. § 1001).

Rule 12.4



852

PUBLIC LAW 91-190—JAN. 1, 1970

[83 STAT.

Public Law 91-190

January 1, 1970
[S. 1075]

AN ACT

To establish a national policy for the environment, to provide for the establishment of a Council on Environmental Quality, and for other purposes.

National Environmental Policy Act of 1969.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That this Act may be cited as the "National Environmental Policy Act of 1969".

PURPOSE

SEC. 2. The purposes of this Act are: To declare a national policy which will encourage productive and enjoyable harmony between man and his environment; to promote efforts which will prevent or eliminate damage to the environment and biosphere and stimulate the health and welfare of man; to enrich the understanding of the ecological systems and natural resources important to the Nation; and to establish a Council on Environmental Quality.

TITLE I

National Environmental Policy Act of 1969, Pub. L. No. 91-190, § 102, 83 Stat. 852, 853-54 (1970).

Electronic Databases

- S.R. 12.5(a) - Code contained in an electronic database
  - Deviation from the *Bluebook*!
  - Parenthetical: name of database; publisher, editor complier (unless put out by government officials)
  - Example: 18 U.S.C.A. § 1956 (Westlaw 2018)

    CAL. BUS. & PROF. CODE § 1670 (Deering, LEXIS 1995)
  - Not: 18 U.S.C.A. § 1956 (Westlaw through Pub. L. No. 113-93 (excluding Pub. L. No. 113-79)).
- 12.5(b) – Internet and online sources
  - Some jurisdictions are online only and you cite to the source directly
  - Authentic, official, or exact copies of sources available online can be cited as if they were the original print source

Subsequent & Prior History

	Rule	Example
Invalidation	Cite the invalidating case in full.	Religious Freedom Restoration Act (RFRA) of 1993, Pub. L. No. 103-141, 107 Stat. 1488, *invalidated by* City of Boerne v. Flores, 521 U.S. 507 (1997).
Repeal	Indicate fact and date of repeal parenthetically, or include full cite to repealing statute if especially relevant, using "repealed by."	Law of June 1, 1895, ch. 4322, § 23, 1895 Fla. Laws ch. 3, 20-21 (repealed 1969).
Amendment	If statute has since been amended, cite (1) fact and date of amendment parenthetically; (2) amending statute in full; or (3) current amended version parenthetically.	33 U.S.C. § 1232 (1982), *amended by*, 33 U.S.C. § 1232(f) (Supp. I 1983).
Prior History	Can be given per Rule 12.8 if relevant.	16 U.S.C. § 298(b) (2006) (amending 16 U.S.C. § 298 (1988)).

Explanatory Parentheticals

- Explanatory parentheticals can be used to:
  - Show code locations of statutes cited to session laws
    - *E.g.*, (codified at . . .)
  - Identify useful dates, like effective dates of statutes
  - Indicate invalidation / repeal / amendment / prior history
  - OR for <u>any other relevant information</u> about a statute
    - 5 U.S.C. § 553(b) (2018) (requiring agencies to publish notice of proposed rulemaking in the *Federal Register*).

Rule 12.9

Special Forms

	Rule	Example
Internal Revenue Code	"26 U.S.C." → "I.R.C."	I.R.C. § 61 (2018).
Ordinances	Give name of political subdivision (abbreviated per T10) and abbreviate state name at beginning of citation. If codified, give name of code (abbreviated per T1), section / subdivision, and year.	MONTGOMERY, ALA., CODE § 3A-11 (1971).
Rules of Evidence and Procedure	Consult specific forms in Rule 12.9.3.	FED. R. CIV. P. 12.
Uniform Acts	Cite as separate code (e.g., U.C.C.). Special rules if citing to *Uniform Laws Annotated* (U.L.A.).	UNIF. ADOPTION ACT § 10, 9 U.L.A. 45 (1988).
Model Codes	Straightforward, but refer to text of Rule 12.9.4 for specifics	MODEL PENAL CODE § 223.6 (A.L.I. 1962).

Short Form

- S.R. 12.10 No *supra* short form for statutes!
- For session laws, as with cases, you can use the short form if the statute is identified in *either* a full or short citation (including *id.*) in one of the previous five footnotes.
  - Section 12.10 of Bluebook has a great chart for text and citation short forms for statutes.
  - S.R. 12.10: U.S. Code and state code citations do not have a short form except for *id.*
- Except with the U.S.C., the word "section" should be spelled out in text. "§" can be used in citations.

Short Form

	Full citation	Short form
Named Statutes	Administrative Procedure Act § 1, 5 U.S.C. § 551 (<year>)	A non-*id.* short form is **not appropriate**.
U.S. Code Provisions	42 U.S.C. § 1983 (<year>)	A non-*id.* short form is **not appropriate**.
State Code Provisions (numbered codes)	DEL. CODE ANN. tit. 28, § 1701 (1999)	A non-*id.* short form is **not appropriate**.
State Code Provisions (named codes)	CAL. EDUC. CODE § 48222 (West 2008)	A non-*id.* short form is **not appropriate**.
Session Laws	National Environmental Policy Act of 1969, Pub. L. No. 91-190, § 102, 83 Stat. 852, 853–54 (1970)	§ 102 *or* National Environmental Policy Act § 102 *or* § 102, 83 Stat. at 853–54

S.R. 12.10

No short forms!

EXAMPLE

4. CAL. EDUC. CODE § 48222 (West 2020).
5. *Id.*
6. *Id.* § 48224; 5 U.S.C. § 553 (2018).
7. 5 U.S.C. § 554 (2018).
8. CAL. EDUC. CODE § 48222 (West 2020).

Reminders

- § 12(a) and § 12(b) are two different subsections of the same section → so one section sign
  - § 12(a)-(b)

- § 12a and § 12b are two different sections → so two section signs
  - §§ 12a-12b

- Rule 3.3(b): Identical digits or letters preceding a punctuation mark may be omitted, otherwise **retain all digits.**
  - WASH. REV. CODE ANN. §§ 18.51.005-.52.900 (West 1989 & Supp. 1991).
  - DEL. CODE ANN. tit. 9, §§ 817-819 (1989).

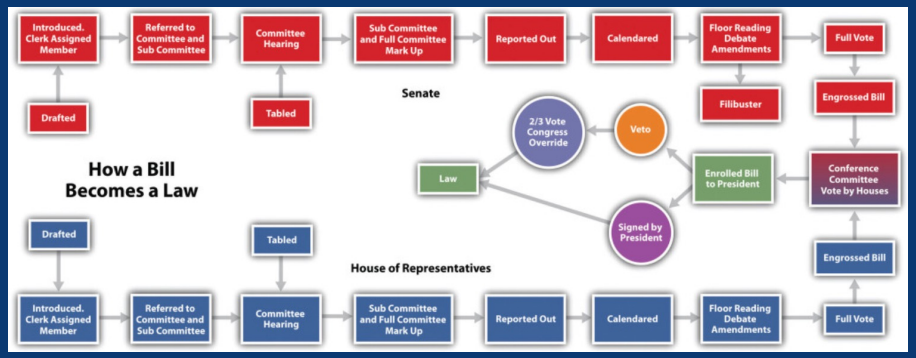
Rule 13:

Legislative Materials

Rule 13

Legislative Materials

- Governs documents generated during the legislative process. (Can think of Rule 13 as documents related to legislative history!)
  - Bills/Resolutions
  - Hearings
  - Reports
  - Debates



- In general, include:
  - Title (if relevant)
  - Abbreviated name of house
  - Number of Congress
  - Number assigned to material
  - Year of publication

Resolutions (an FYI)

Used to express opinions, regulate internal affairs, or address matters that do not *require* the force of law

- **Concurrent Resolution** – Generally used to make or amend rules applying to both houses. For example, concurrent resolutions can set the time of Congress' adjournment. Don't require presidential approval.
- **Simple Resolution** – Legislation that relates to the operations of a single chamber or expresses the collective opinion of that chamber on public policy issues. Does not require presidential approval.
- **Joint Resolution** – No real difference between this and a bill. Requires presidential approval. Can have force of law!

Unenacted Bills & Resolutions

- Format: [name of bill, if relevant] ["S." or "H.R."] [bill number], [# of Cong.] [section pincite] (year of publication)
  - S. 516, 105th Cong. § 2 (1997).
  - Protection from Personal Intrusion Act, H.R. 2448, 105th Cong. § 2(a) (1997).
- Use a parenthetical indicating date and stage of bill to distinguish multiple versions
  - (as passed by S. Comm. on the Judiciary, May 4, 1989).
- Cite resolutions analogously, using the abbreviations listed in Rule 13.2(a)
- S.R. 13.2: Follow this rule for state bills & resolutions

Enacted Bills & Resolutions

- Generally, enacted bills and joint resolutions are statutes, cited according to Rule 12.

- If you do want to cite the bill (for legislative history, etc.), cite according to Rule 13.2(a) following the same format as an unenacted bill.
  - Just add a parenthetical that says (enacted)
    - S. Res. 141, 106th Cong. (1999) (enacted).

Federal Hearings

- Probably the most common Rule 13 source.
- Format: [*Title*], [# of Cong.] [page number] (year) (statement of . . . .)
  - Title includes: subject matter, bill number (if relevant), subcommittee name (if relevant), committee name
  - Abbreviate subcommittee and committee names using T6, T9, and T10.
  - Abbreviate the speaker's title (if any) using T6, T9, and T11.
    - S.R. 13.3: List their full name on first reference but only the last name in subsequent references.
  - DON'T abbreviate the title of the hearing (unless it's a committee)

    - *Copyright Protection for Semiconductor Chips: Hearing on H.R. 1028 Before the Subcomm. on Cts., C.L. & the Admin. of Just. of the H. Comm. on the Judiciary*, 98th Cong. 14 (1983) (statement of Jon A. Baumgarten, Copyright Counsel, Ass'n of Am. Publishers).
    - *Right to Encryption: Hearing Before the H. Comm. on the Judiciary*, 114th Cong. 98 (2016) (statement of Sen. Josh Revesz, Chairman, H. Comm. on the Judiciary).

Example

COPYRIGHT PROTECTION FOR SEMICONDUCTOR CHIPS

HEARINGS

BEFORE THE

SUBCOMMITTEE ON COURTS, CIVIL LIBERTIES, AND THE ADMINISTRATION OF JUSTICE

OF THE

COMMITTEE ON THE JUDICIARY
HOUSE OF REPRESENTATIVES

NINETY-EIGHTH CONGRESS

FIRST SESSION

ON

H.R. 1028

COPYRIGHT PROTECTION FOR SEMICONDUCTOR CHIPS

AUGUST 3 AND DECEMBER 1, 1983

11

with the law firm of Paskus, Gordon & Hyman, and represents the Association of American Publishers. Welcome, Mr. Baumgarten.

TESTIMONY OF JON A. BAUMGARTEN, COPYRIGHT COUNSEL, ASSOCIATION OF AMERICAN PUBLISHERS, INC.

Mr. BAUMGARTEN. Thank you, Mr. Chairman. May I ask at this point that my prepared statement be entered into the record, and I'll essentially summarize it as we proceed.

[Complete statement follows:]

PREPARED STATEMENT OF JON A. BAUMGARTEN, COPYRIGHT COUNSEL, ASSOCIATION OF AMERICAN PUBLISHERS, INC.

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that innovative legislation may be the appropriate vehicle toward this end. Indeed, quite to the contrary, it is our industry, the book and journal publishers, who have long suffered from indiscriminate application of the new technologies of disseminating and reproducing intellectual works. We can well understand and sympathize with the concerns of other industries, such as the chip design industry, with similar threats. What we do question is the precise nature of the bill currently under consideration. And it is to this that I will now turn.

AAP's interests and concerns with respect to H.R. 1028 are essentially twofold. First, as the chairman alluded to earlier, we urge that the committee approach chip protection as a severable, unitary measure—what some call the sui generis approach. In saying this I do not want to confuse the record. We do not oppose those who assert that some copyright concepts, particularly automatic protection based upon independent creation rather than patent protection based upon long, time-consuming prosecution, can and should be applied to chip design. If the case can be made for that form of protection, Congress may well consider doing so.

Our concern lies with the obverse; that is, with the fundamental departures from the copyright system that appear in this bill. This includes a number of provisions, such as the extension of the copyright protection to utilitarian objects, to objects that the bill itself acknowledges may not be writings, the according of an apparent use right to control any use of the work, limitation on remedies against innocent infringers, the extension of compulsory licensing

Copyright Protection for Semiconductor Chips: Hearing on H.R. 1028 Before the Subcomm. on Cts., C.L., & the Admin. of Just. of the H. Comm. on the Judiciary, 98th Cong. 14 (1983) (statement of Jon A. Baumgarten, Copyright Counsel, Ass'n of Am. Publishers).

State Hearings

- Same as federal, but include the number of the legislative session and the state abbreviation:
  - *Tax Credit for Cost of Providing Commuter Benefits to Employees: Hearing on H.D. 636 Before the H. Comm. on Ways & Means*, 1999 Leg., 413th Sess. 5-8 (Md. 1999) (statement of Del. Paul Carlson, Member, H. Comm. on Ways & Means).

Reports and Documents

- Format for a Congressional report:
  [S. OR H.R.] REP. [NO. {Cong. #}-{report #}] [pincite] (year of publication).
- Note: S., H.R., REP., and NO. must be in SMALL CAPS!
- Examples:
  - H.R. REP. NO. 99-253, pt. 1, at 54 (1985)
  - S. REP. NO. 84-2, at 7 (1955).
- Documents are cited analogously, with "DOC." instead of "REP."
- For conference reports, add (Conf. Rep.) after the citation
  - S. REP. NO. 95-601, at 5 (1977) (Conf. Rep.)
- Note: Congressional reports originate from a single committee. Conference reports are the final legislative language on which the conference committee of both houses has agreed.

Rule 13.4

- Rule 13.4(b): You can include a title for a report, but if you do, you should also give an author.
- Author and title should both be in SMALL CAPS
- The author can be an institutional author, abbreviated according to T6 and T10

  - CARLTON KOEPGE, THE ROAD TO INDUSTRIAL PEACE, H.R. DOC. NO. 82-563, at 29-30 (1953).

Rule 13.4(d)

- Rule 13.4(d): Federal legislative agency reports. The most common ones are CRS reports and GAO reports
- Cited as works of institutional authors (rule 15.1(c)) and abbreviated using T6 and T10
- Include the report number, and everything is in small caps!
- Easiest approach is to **use the examples in rule 13.4(d).**

  - U.S. GOV'T ACCOUNTABILITY OFF., GAO-15-621, FACIAL RECOGNITION TECHNOLOGY: COMMERCIAL USES, PRIVACY ISSUES, AND APPLICABLE FEDERAL LAW 27 (2015).

Rule 13.4(f)

- For state reports and documents, the format is similar to federal. Add the legislative session number + state abbreviation, unless it's elsewhere in the source
  - S. 178-247, 1st Sess., at 4 (Pa. 1994)

Debates

- Post-1873 debates are cited to the *Congressional Record*; citation to permanent edition preferred
  - 123 CONG. REC. 17,147 (1977).
- If you have to cite to the daily edition, you will have to include extra information
  - 131 CONG. REC. S11,465 (daily ed. Sep. 13, 1985).
- Pre-1873? Look up examples in Rule 13.5:
  - 1837-1873: CONG. GLOBE
  - 1824-1837: REG. DEB.
  - 1789-1824: ANNALS OF CONG.

Separately Bound Legislative Histories

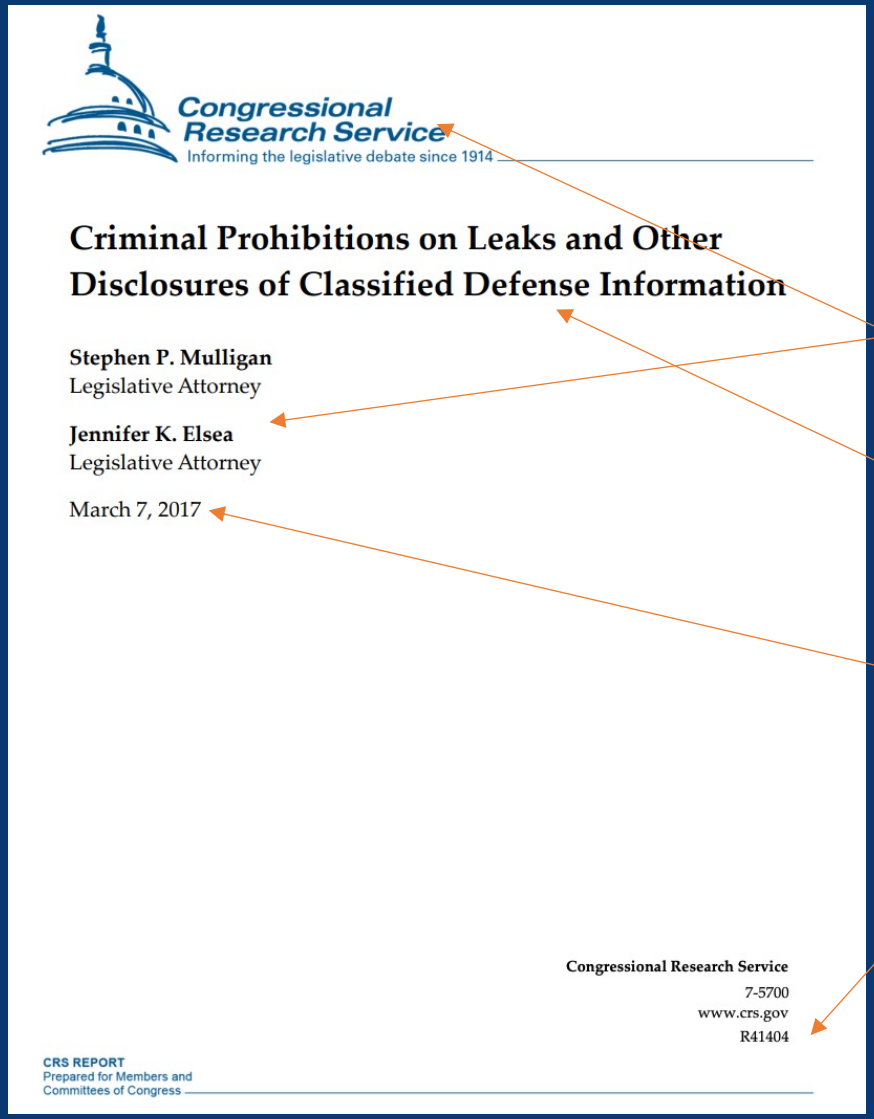
- Separately bound legislative histories may exist for important legislation
  - Parallel citations to these can be used to help the reader locate the source.
- Cite using Rule 15 (books, reports, and other nonperiodic materials)
- Use "*reprinted in*" to connect the main source and the parallel citation
  - H.R. REP. NO. 80-245, at 6 (1947), *reprinted in* 1 NLRB, LEGISLATIVE HISTORY OF THE LABOR-MANAGEMENT RELATIONS ACT, 1947, at 292, 297 (1948).

Short Forms

- No *supra* short form for legislative materials! (Except for hearings or if you use the [hereinafter] short form for sources with long titles)

- Like with cases & statutes, you can use the short form if the materials is identified in *either* a full or short citation (including *id.*) in one of the previous five footnotes.
  - Section 13.8(c) has a great chart for text and citation short forms

Example



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Criminal Prohibitions on Leaks and Other Disclosures of Classified Defense Information

Stephen P. Mulligan
Legislative Attorney

Jennifer K. Elsea
Legislative Attorney

March 7, 2017

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CRS REPORT
Prepared for Members and
Committees of Congress

STEPHEN P. MULLIGAN & JENNIFER K. ELSEA, CONG. RSCH. SERV., R41404, CRIMINAL PROHIBITIONS ON LEAKS AND OTHER DISCLOSURES OF CLASSIFIED DEFENSE INFORMATION 16 (2017).

Rule 14:

Administrative Materials

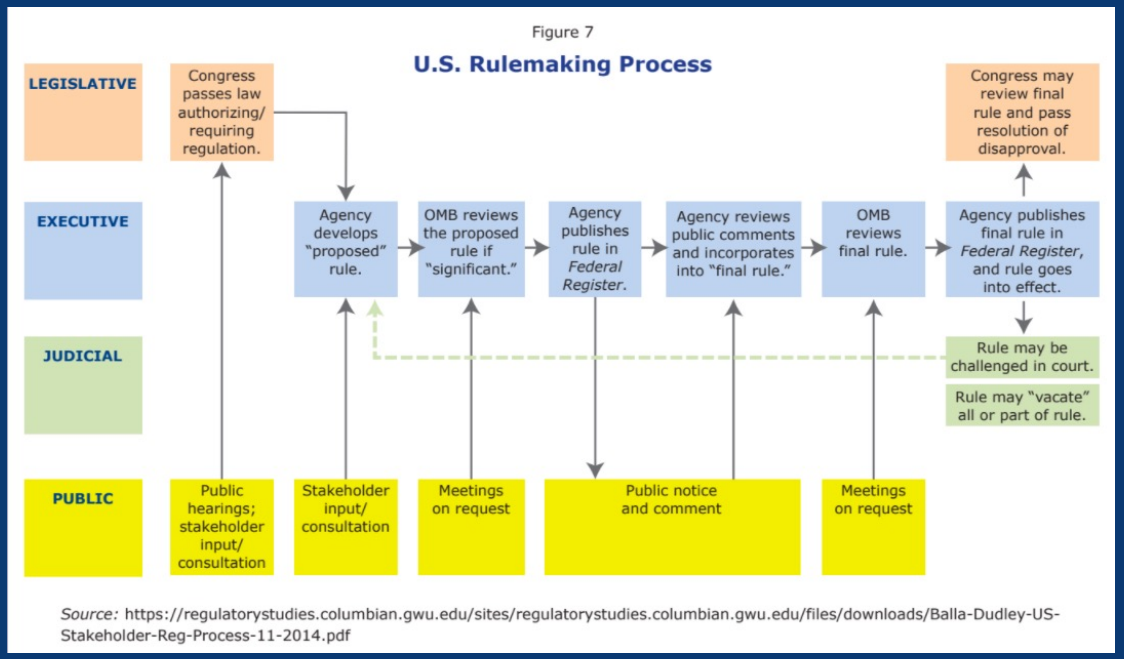
Administrative and Executive Materials

- Administrative agencies and other executive institutions produce a tremendous variety of official materials.
- This rule provides general guidance for the most common forms of executive materials.
- Consult T1.2 for information regarding specific federal organizations that use unique citation formats.

Rule 14

Administrative Materials

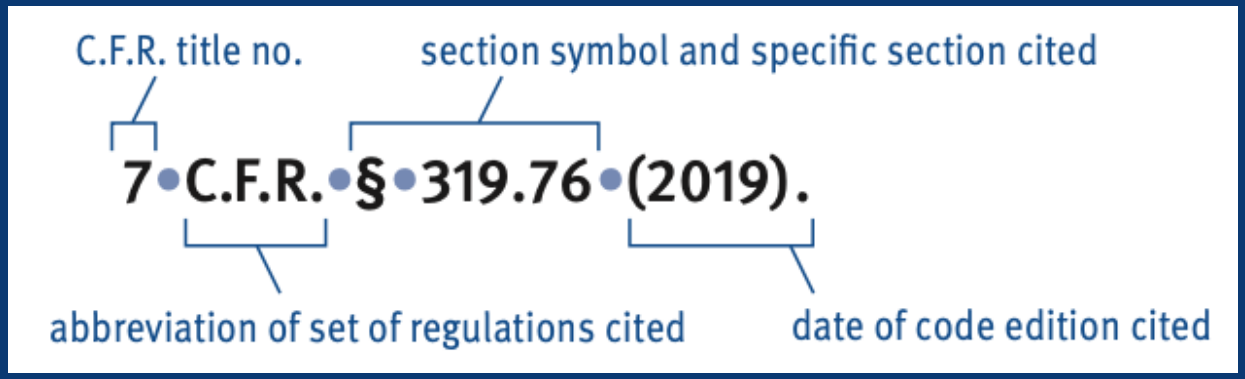
Proposed Regulations → Federal Register → Code of Federal Regulations



Source: https://regulatorystudies.columbian.gwu.edu/sites/regulatorystudies.columbian.gwu.edu/files/downloads/Balla-Dudley-US-Stakeholder-Reg-Process-11-2014.pdf

Rule 14.2(a)

Code of Federal Regulations



- Cite to the most recent edition of the C.F.R.
  - Each title is revised at least once a year, according to the following schedule: January 1 (tits. 1-16), April 1 (tits. 17-27), July 1 (tits. 28-41), October 1 (tits. 42-50)
- Give the name of the rule or regulation only if the rule or regulation is commonly cited that way or the information would otherwise aid in identification.

Rule 14.2(a)

Federal Register

- The Federal Register (Fed. Reg.) publishes rules and regulations <u>before</u> they are entered into the Code of Federal Regulations. Like session laws!
  - Give any commonly used name of the rule/regulation;
  - the volume and page on which the rule/regulation begins;
  - a pincite;
  - the date of the rule or regulation;
  - and codification information, if given.
- Importation of Fruits and Vegetables, 60 Fed. Reg. 50379, 50381 (Sep. 29, 1995) (to be codified at 7 C.F.R. pt. 300).

Proposed Rules, Other Notices, and Comments

- When citing notices of proposed rules and regulations, follow the form for final rules, but add the status to the date parenthetical.
  - Control of Air Pollution from New Motor Vehicles and New Motor Vehicle Engines, 56 Fed. Reg. 9754 (proposed Mar. 7, 1991) (to be codified at 40 C.F.R. pt. 86).

Rule 14.2(d)

Other Publications

- Cite as a work by an institutional author (Rule 15.1(c))
  - SMALL CAPS!
- Include a serial number if any
  - Unless issued as a congressional document, then → 13.4 governs
- S.R. 14.2(d): Cite using this rule if the report…
  - Has a document number: U.S. EQUAL EMP. OPPORTUNITY COMM'N, EEOCM1A, A TECHNICAL ASSISTANCE MANUAL ON THE EMPLOYMENT PROVISIONS (TITLE I) OF THE AMERICANS WITH DISABILITIES ACT (1992); or
  - Provides guidance to regulated parties: U.S. FOOD & DRUG ADMIN., PREMARKET ASSESSMENT OF PEDIATRIC MEDICAL DEVICES: GUIDANCE FOR INDUSTRY AND FOOD AND DRUG ADMINISTRATION STAFF (2014).

Otherwise, cite as Rule 18 PDF.

Rule 14.3

Adjudications and Arbitrations

- For the most part, citation conforms to Rule 10 (cases). Except:
- Administrative adjudications. Cite by the reported name of the first-listed private party (abbreviated according to rule 10.2) or by the official subject-matter title. Omit all procedural phrases.
  - Trojan Transp., Inc., 249 NLRB 642 (1980).
- Arbitrations. Cite as court cases if adversary parties are named, and as administrative adjudications if they are not. The arbitrator's name should be indicated parenthetically:
  - Charles P. Ortmeyer, 23 Indus. Arb. 272 (1980) (Stern, Arb.).

Rules 14.4 & 14.5

- Rule 14.4: State Materials
  - Read this rule in depth! Different rules for different kinds of sources
- Rule 14.5 – Commercial Electronic Databases
  - Append database information to end of citation
  - Reichhold Chems., Inc., 91 F.T.C. 246 (1978), 1978 WL 206094.

Rule 14.6

Short Form

- Again, the five footnote rule applies!
- See examples in Rule 14.6 section

	Full citation	Short form
Code of Federal Regulations	FTC Credit Practices Rule, 16 C.F.R. § 444.1 (2009)	Non-*id.* short form is not appropriate.
Federal Register	Importation of Fruits and Vegetables, 60 Fed. Reg. 50379, 50381 (Sept. 29, 1995) (to be codified at 7 C.F.R. pt. 300)	Importation of Fruits and Vegetables, 60 Fed. Reg. at 50381

Practice Exercise

Incorrect text

[1] *See Dodd-Frank Wall Street Reform and Consumer Protection Act*, P. L. No. 11-203, § 1061(a)(2)(A).

124 STAT. 1376 PUBLIC LAW 111–203—JULY 21, 2010

Public Law 111–203
111th Congress

An Act

July 21, 2010
[H.R. 4173]

To promote the financial stability of the United States by improving accountability and transparency in the financial system, to end "too big to fail", to protect the American taxpayer by ending bailouts, to protect consumers from abusive financial services practices, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

Dodd-Frank Wall Street Reform and Consumer Protection Act. 12 USC 5301 note.

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the "Dodd-Frank Wall Street Reform and Consumer Protection Act".

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
Sec. 3. Severability.
Sec. 4. Effective date.
Sec. 5. Budgetary effects.
Sec. 6. Antitrust savings clause.

TITLE I—FINANCIAL STABILITY

Sec. 101. Short title.

PUBLIC LAW 111–203—JULY 21, 2010 124 STAT. 2035

(5) FAILURE TO COMPLY WITH ORDER.—

(A) ACTIONS BY THE SECRETARY.—If any person has failed to comply with a final order issued under paragraph (4), the Secretary of Labor may file a civil action in the United States district court for the district in which the violation was found to have occurred, or in the United States district court for the District of Columbia, to enforce such order. In actions brought under this paragraph, the district courts shall have jurisdiction to grant all appropriate relief including injunctive relief and compensatory damages.

(B) CIVIL ACTIONS TO COMPEL COMPLIANCE.—A person on whose behalf an order was issued under paragraph (4) may commence a civil action against the person to whom such order was issued to require compliance with such order. The appropriate United States district court shall have jurisdiction, without regard to the amount in controversy or the citizenship of the parties, to enforce such order.

(C) AWARD OF COSTS AUTHORIZED.—The court, in issuing any final order under this paragraph, may award costs of litigation (including reasonable attorney and expert witness fees) to any party, whenever the court determines such award is appropriate.

(D) MANDAMUS PROCEEDINGS.—Any nondiscretionary duty imposed by this section shall be enforceable in a mandamus proceeding brought under section 1361 of title 28, United States Code.

(d) UNENFORCEABILITY OF CERTAIN AGREEMENTS.—

(1) NO WAIVER OF RIGHTS AND REMEDIES.—Except as provided under paragraph (3), and notwithstanding any other provision of law, the rights and remedies provided for in this section may not be waived by any agreement, policy, form, or condition of employment, including by any predispute arbitration agreement.

(2) NO PREDISPUTE ARBITRATION AGREEMENTS.—Except as provided under paragraph (3), and notwithstanding any other provision of law, no predispute arbitration agreement shall be valid or enforceable to the extent that it requires arbitration of a dispute arising under this section.

(3) EXCEPTION.—Notwithstanding paragraphs (1) and (2), an arbitration provision in a collective bargaining agreement shall be enforceable as to disputes arising under subsection (a)(4), unless the Bureau determines, by rule, that such provision is inconsistent with the purposes of this title. Regulation.

SEC. 1058. EFFECTIVE DATE. 12 USC 5561 note.

This subtitle shall become effective on the designated transfer date.

Subtitle F—Transfer of Functions and Personnel; Transitional Provisions

SEC. 1061. TRANSFER OF CONSUMER FINANCIAL PROTECTION FUNCTIONS. 12 USC 5581.

(a) DEFINED TERMS.—For purposes of this subtitle—

Practice Exercise

[1] *See* Dodd-Frank Wall Street Reform and Consumer Protection Act, P. L. No. 11-203, § 1061(a)(2)(A).

Practice Exercise

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Practice Exercise

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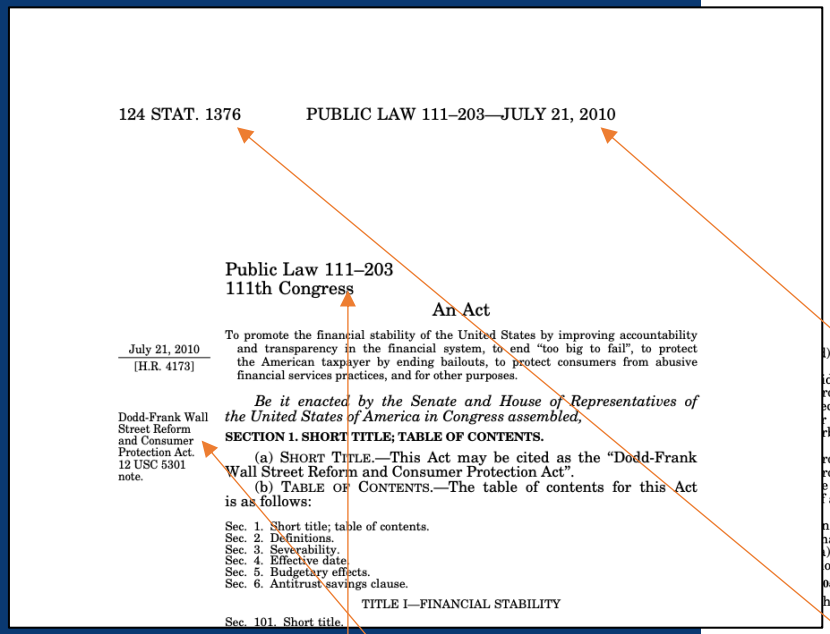
Practice Exercise

[1] *See* Dodd-Frank Wall Street Reform and Consumer Protection Act, Pub. L. No. 111-203, § 1061(a)(2)(A), 124 Stat. 1376, 2035 (2010) (codified at 12 U.S.C. § 5581).

Example



124 STAT. 1376 PUBLIC LAW 111–203—JULY 21, 2010

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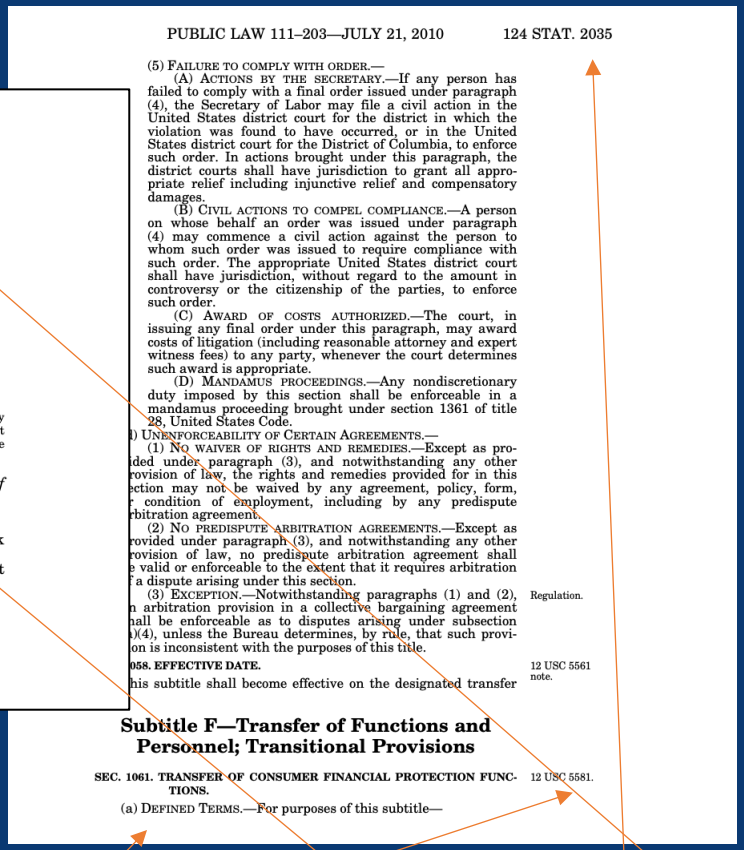
TITLE I—FINANCIAL STABILITY

Sec. 101. Short title.



PUBLIC LAW 111–203—JULY 21, 2010 124 STAT. 2035

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(B) CIVIL ACTIONS TO COMPEL COMPLIANCE.—A person on whose behalf an order was issued under paragraph (4) may commence a civil action against the person to whom such order was issued to require compliance with such order. The appropriate United States district court shall have jurisdiction, without regard to the amount in controversy or the citizenship of the parties, to enforce such order.

(C) AWARD OF COSTS AUTHORIZED.—The court, in issuing any final order under this paragraph, may award costs of litigation (including reasonable attorney and expert witness fees) to any party, whenever the court determines such award is appropriate.

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Subtitle F—Transfer of Functions and Personnel; Transitional Provisions

SEC. 1061. TRANSFER OF CONSUMER FINANCIAL PROTECTION FUNCTIONS. 12 USC 5581.

(a) DEFINED TERMS.—For purposes of this subtitle—

[1] *See* Dodd-Frank Wall Street Reform and Consumer Protection Act, Pub. L. No. 111-203, § 1061(a), 124 Stat. 1376, 2035 (2010) (codified at 12 U.S.C. § 5581).

Questions?

- DE Office Hours, Monday, March 2, 2-3pm, Dining Hall
- Next training: Rules 15-17, Monday, March 2, 3:10pm, SLB 122
  - **Chips, dips & churros!**